

popularly equivalent, or the intention otherwise sufficiently appears upon the face of the instrument.¹

¹ **EXPRESS TRUSTS. — Formality.** — No particular formality or express words are necessary in the creation of an express trust; *Urann v. Coates*, 109 Mass. 581; *Fisher v. Fields*, 10 Johns. 495; *Giddings v. Palmer*, 107 Mass. 270; *Perry on Trusts*, § 82; and former note relating to formality, page 56; the same rules apply to equitable as to legal estates; *Noble v. Andrews*, 37 Conn. 346; and technical words receive the same meaning; *McPherson v. Snowdon*, 19 Md. 197; *Carter v. Montgomery*, 2 Tenn. Ch. 216; *Mullany v. Mullany*, 4 N. J. Eq. 16; the rule in *Shelley's* case has been abolished by statute, in very many of the states, and was always an arbitrary rule for the disposition of property, and not one for executing the intention of the settlor; *Yarnall's App.* 70 Pa. St. 340; *Doebler's App.* 64 Pa. St. 9; *Hileman v. Bonslaugh*, 1 Harris, 351; *Coape v. Arnold*, 2 Sm. & Giff. 311; the above interpretation of technical words, and the rule in *Shelley's* case, apply only to executed trusts; *Imlay v. Huntington*, 20 Conn. 162; *Neves v. Scott*, 13 How. 208; *Wiley v. Smith*, 3 Kelly, 551; *Porter v. Doby*, 2 Rich. Eq. 49; *Wood v. Burnham*, 26 Wend. 9; *Carradine v. Carradine*, 33 Miss. 698; *Cushing v. Blake*, 30 N. J. Eq. 689. An express trust was created by deed "upon trust and confidence and for sole use and benefit of" wife for life, remainder to children; *McCarthy v. McCarthy*, 74 Ala. 546; a written agreement by officers of a mining company to give a party a certain share in mining land for services is good; *Compo v. Jackson Iron Co.* 49 Mich. 39; likewise a conveyance of land in trust to rent and sell and pay the proceeds to grantor for life, and then to those named; *Heermars v. Schmaltz*, 10 Biss. C. C. 323; Effect of *habendum* clause in deed; *McElroy v. McElroy*, 113 Mass. 509; trust created by *nota bene* after deed; *Ivory v. Burns*, 56 Pa. St. 300; by deed on condition; *Baldwin v. Atwood*, 23 Conn. 367; by a deposit in trust for L; *Weber v. Weber*, 9 Daly (N. Y.) 211; *Smith v. Speer*, 34 N. J. Eq. 336; widow set apart a portion of money received from husband's life insurance for her daughter, orally, and then purchased land. A trust arose for the daughter; *Cobb v. Knight*, 74 Me. 253; an instrument gave, granted and conveyed to grantee to hold to her use and benefit, reserving the right to manage and collect, thereby creating an irrevocable trust; *Walker v. Crews*, 73 Ala. 412.

For cases where trust was created, see *Schlessinger v. Mallard*, 70 Cal. 326; *Corse v. Leggett*, 25 Barb. 389; *Pratt v. Thorton*, 28 Me. 355; *Fletcher v. Derrickson*, 3 Bosw. 181; *Conway v. Kinsworthy*, 21 Ark. 9; *Noble v. Morris*, 24 Ind. 478; *contra*, *Bacon v. Ransom*, 139 Mass. 117; *Bibb v. Hunter*, 79 Ala. 351; *Fussell v. Hennessy*, 14 R. I. 550; *White v. Farley*, 81 Ala. 563.

As to establishing an express trust by parol, see *Hellman v. McWilliams*, 70 Cal. 449; *Taylor v. Sayles*, 57 N. H. 465; *Columbus & C. R. W. Co. v. Braden*, 110 Ind. 558; *Green v. Cates*, 73 Mo. 115; *Belknap v. Caldwell*, 82 Ind. 270; *Cade v. Davis*, 96 N. C. 139; *Kane v. O'Connors*, 78 Va. 76; *Preston v. Casner*, 104 Ill. 262; *Hollinshead's App.* 103 Pa. St. 158; *Link v. Link*, 90 N. C. 235; *Cain v. Cox*, 23 W. Va. 504; *Gilman v. McArdle*, 99 N. Y. 451; *Crouse v. Frothingham*, 97 N. Y. 105; *Grace v. Hanks*, 57 Tex. 14.

Executed and executory trusts. — If a will or deed set forth a trust so definitely that it only remains for the trustee to execute it as directed, it is termed an executed trust, and is subject to the rules controlling legal estates; but if a trustee receive a trust which is subject to future events or contingencies, and the directions regarding it are informal and incomplete, it is called an